

Notice: Do not use this form to ask to change the date of a domestic violence restraining order hearing. For more information, read [Domestic Violence Restraining Order Hearings](#), *How to Ask for a New Hearing Date*.

1. Name of person asking to reschedule the hearing (*specify*):
 - a. ☐ I am the party who filed the *Request for Order* (form FL-300), order to show cause, or other moving paper in item 2.
 - b. ☐ I am the party who is responding to the *Request for Order* (form FL-300), order to show cause, or other moving paper in item 2.
2. I ask that the court reschedule the hearing date for the (*select one*)
 - a. ☐ *Request for Order*.
 - b. ☐ *Order to Show Cause* for ☐ contempt. ☐ seek work.
 - c. ☐ other (*specify*):
3. The item in 2 was filed on (*date*):
4. The hearing is currently set for (*date*):
5. The court issued temporary emergency (ex parte) orders with item 2 relating to (*specify*)
 - a. ☐ child custody or visitation (parenting time).
 - b. ☐ property restraint orders under Family Code section 2045 or 4620.
 - c. ☐ other (*specify*):

6. I request that the hearing be rescheduled as follows:

a. ☐ After (*specify date*):

b. ☐ On a date I am available, which does not include (*specify dates*):

c. ☐ Other (*specify*):

PETITIONER/PLAINTIFF: RESPONDENT/DEFENDANT: OTHER PARENT/PARTY:	CASE NUMBER:
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REASON FOR RESCHEDULING

7. The hearing needs to be rescheduled because *(select all that apply)*
- a. ☐ the papers were not served before the hearing date.
 - b. ☐ the parties need to attend child custody mediation or child custody recommending counseling before the hearing.
 - c. ☐ as the responding party to a request for temporary emergency (ex parte) orders for property restraint, I am entitled as a matter of course to have the court reschedule the hearing one time for a reasonable period to respond to the request.
(This reason is available only if you checked item 5b above.)
 - d. ☐ other good cause as stated ☐ below: ☐

SPECIAL PROCEDURES MAY APPLY

The procedures in items 8 and 9 apply only if the documents in item 2 were served on the parties.

8. Unless the court determines that there are exceptional circumstances, the other parties must first be
- a. notified that you are going to ask the court to reschedule the hearing; and
 - b. served with copies of the request to reschedule at the first reasonable opportunity.
9. You must then submit to the court a proof of the notice and service in 8a and 8b, along with the request to reschedule. You may use *Declaration Regarding Notice and Service of Request for Temporary Emergency (Ex Parte) Orders* (form FL-303) to comply with the proof of notice and service.
10. You should submit the documents in item 9 to the court no later than five court days before the hearing date set on the *Request for Order* (form FL-300), order to show cause, or other moving paper, unless you have a very good reason to submit them later.

PROPOSED ORDER REQUIRED

11. I have submitted a proposed *Order on Request to Reschedule Hearing* (form FL-309).

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: _____

(TYPE OR PRINT NAME)



SIGNATURE